

STATE OF NEW YORK

4280--B

2025-2026 Regular Sessions

IN ASSEMBLY

February 3, 2025

Introduced by M. of A. BORES, BURDICK, CLARK, SHIMSKY, TORRES, McDONALD, PAULIN, SCHIAVONI, ROMERO, KASSAY, LUNSFORD, CUNNINGHAM -- read once and referred to the Committee on Racing and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Racing and Wagering in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the racing, pari-mutuel wagering and breeding law, in relation to requiring mobile sports wagering operators to establish default betting limits on their platforms and to notify authorized sports bettors of their ability to opt-out of the default betting limits

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "choice in responsible gaming act".

3 § 2. Section 1367-a of the racing, pari-mutuel wagering and breeding
4 law is amended by adding a new subdivision 4-a to read as follows:

5 4-a. (a) For the purposes of this subdivision, "default betting limit"
6 shall mean a defined, maximum monetary amount that an authorized sports
7 bettor may wager through a mobile sports wagering platform over a
8 defined period of time.

9 (b) All mobile sports wagering operators shall implement default
10 betting limits on their mobile sports wagering platforms. The default
11 betting limit shall be determined by the commission prior to the effec-
12 tive date of this subdivision and shall be based on the best practices
13 to encourage responsible gambling.

14 (c) When an authorized sports bettor registers for a mobile sports
15 wagering operator's platform, such authorized sports bettor shall be
16 opted-in to the default betting limit. Authorized sports bettors who are

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 already registered for the mobile sports wagering platform prior to the
2 effective date of this subdivision shall also be opted-in to the default
3 betting limit. All authorized sports bettors shall have the option to
4 opt-out of the default betting limit.

5 (d) The mobile sports wagering operator or platform shall notify
6 authorized sports bettors of the existence of the default betting limit
7 and the option to opt-out at the time of registration. For authorized
8 sports bettors already registered for the mobile sports wagering plat-
9 form prior to the effective date of this subdivision, such authorized
10 sports bettors shall be notified that they have been opted-in to the
11 default betting limit and that they have the option to opt-out.

12 § 3. This act shall take effect on the one hundred eightieth day after
13 it shall have become a law. Effective immediately, the addition, amend-
14 ment and/or repeal of any rule or regulation necessary for the implemen-
15 tation of this act on its effective date are authorized to be made and
16 completed on or before such effective date.